

110	Brixmor Plaza By The Sea LLC vs. San Clemente Natural Solutions, LLC, 25-01486485	The unopposed motion of attorney Cristina Saca of Absolute Law Group, PC to be relieved as counsel for Defendant Shawn McManigal is GRANTED. Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client. The Case Management Conference is continued to August 20, 2026 at 1:30 p.m. <i>Moving attorney to give notice.</i>
111	Shoghibenam vs. Kia America, Inc., 25-01509034	Defendant Kia America, Inc. ("Defendant") filed a motion to strike and demurrer. In the motion to strike, Defendant moves to strike Plaintiffs' fifth cause of action for fraudulent inducement – concealment and Plaintiffs' claim for punitive damages. Defendant also demurs to the fifth cause of action for fraudulent inducement – concealment. The demurrer does not address any other cause of action alleged. Plaintiffs Lida Shoghibenam and Ali Khazand ("Plaintiffs") oppose both the motion to strike and the demurrer. I FIFTH CAUSE OF ACTION FOR FRAUDULENT INDUCEMENT – CONCEALMENT Both the demurrer and the motion to strike attack Plaintiffs' fifth cause of action for fraudulent inducement – concealment. In <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844, the Court of Appeal found that a plaintiff sufficiently stated a cause of action for fraudulent inducement – concealment at the pleading stage. The Court found: "Plaintiffs alleged the above elements of fraud in the SAC. As we have discussed, plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan